ABB - Rotork

MN - 75061

Phase 1 Determination

Acquisition may be put into effect

7 November 2026

1. Determination and statement of reasons

Notified acquisition	ABB Ltd (**ABB**), acting through its wholly owned acquisition vehicle ABB Automation Holding UK Limited, proposes to acquire all issued and to be issued ordinary shares in Rotork plc (**Rotork**) (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, ABB, is a Swiss-headquartered global technology company specialising in electrification and automation. ABB supplies products, systems and services across industrial automation, flow measurement and management, electrical power distribution, motion technologies and robotics worldwide. The target, Rotork, is a global provider of intelligent flow control solutions and instrumentation for oil and gas, wastewater, power generation, chemical process, and industrial applications, headquartered in Bath, United Kingdom and publicly traded on the London Stock Exchange.
Overlap and relationship between the Parties	The parties overlap globally and in Australia in the supply of the following equipment used in the operation of valves: • actuators • positioners • field instruments, specifically I/P converters. There is also a vertical relationship between the parties involving some reciprocal supplies, but these occur outside of Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the *Competition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and engagement with third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The market share aggregation resulting from the Acquisition is estimated to be low. • The merged firm would continue to face competition from

	multiple alternative suppliers of actuators, positioners and field instruments, specifically I/P convertors.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act